

25STCV26351 25STCV26351

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-09-28

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Case Number: 25STCV26351 Hearing Date: September 28, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT 309

TENTATIVE

RULING

LILIA HANSBROUGH

vs.

WELLS FARGO NA

Case

No.: 25STCV26351

Hearing Date: September 28, 2026

Defendant's demurrer is SUSTAINED, WITH 15 DAYS LEAVE TO AMEND.

On 9/9/2025, in propria person

plaintiff Lilia Hansbrough (Plaintiff) filed suit against Wells Fargo NA

(Defendant). On 3/17/2026, Plaintiff filed a first amended complaint (FAC) alleging:

(1) breach of implied contract; and (2) promissory estoppel.[1]

On 5/22/2026, Defendant demurred to

Plaintiff's first and second causes of action.

Factual

Background

On 12/6/2024, Plaintiff executed a California General Durable Power of Attorney (POA) form appointing herself as her attorney-in-fact. (See FAC, Exh. A.) In July 2025, Plaintiff applied for a \$25,000 personal loan from Wells Fargo using the POA. (FAC ¶ 6.) Plaintiff was told Wells Fargo's underwriters were reviewing her application. (Complaint ¶ 8.) Wells Fargo denied Plaintiff's application for a loan. (See FAC, Exh. C.) Wells Fargo advised Plaintiff that the Bank's "policy does not allow a customer to be listed as their own power of attorney [to obtain] a loan without completing the application process." (Id.) The Bank invited her to re-apply for a personal loan. (Id.)

Discussion

Defendant argues that Plaintiff has not alleged sufficient facts to support her claims.

After review, the Court agrees.

As for the first cause of action for breach of implied contract, the California Civil Code defines an implied contract as one in which "the existence and terms of which are manifested by conduct." (Cal. Civ. Code § 1621.) California courts take this a step farther to set out that an implied contract is of "no less degree than an express contract, must be founded upon an ascertained agreement of the parties to perform it." (Silva v. Providence Hospital of Oakland (1939) 14 Cal.2d 762, 773.) Thus, courts view a true implied contract as existing of "obligations arising from a mutual agreement and intent to promise where the agreement and promise have not been expressed in words." (Dunham, Carrigan & Hayden Co. v. Rubber Co. (1927) 84 Cal.App. 669; Williston on Contracts, vol. 1, sec. 3.)

Here, Plaintiff alleges that she attempted to obtain a loan in her name from Wells Fargo by using a POA form in which she appointed herself as her attorney-in-fact. It is undisputed that Wells Fargo refused to accept her POA and explained that its policy "does not allow a customer to be listed as their own power of attorney" and invited her to reapply for a loan without the power of attorney. (See FAC, Ex. C.) But rather than re-apply in her individual name,

Plaintiff sued. She alleges that as a result of being unable to obtain the loan, she suffered a financial loss and loss of opportunities. (See FAC, ¶ 11.)

As such, by Plaintiff's own allegations, Defendant did not enter into a contract with her, but rather reviewed and denied her application because she applied as her own attorney-in-fact, which is not allowed by the Bank.

As for the second cause of action, even accepting all allegations as true, the FAC does not allege a specific, enforceable promise that Wells Fargo made that Plaintiff relied on to her detriment. Wells Fargo agreed to review her application for a personal loan. It did. It denied the application because she attempted to obtain the loan as her own attorney-in-fact, which the Bank does not allow. That was explained to her and she was invited to apply again, but did not.

Leave to amend will be afforded to Plaintiff to allege facts which could resolve these deficiencies and state a claim.

Based on the foregoing, Defendant's demurrer is sustained with 15 days leave to amend.

It is so
ordered.

Dated:
September , 2026

Hon. Jon R. Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at smcdept17@lacourt.org by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative.
If all parties to a motion submit, the court will adopt this

tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.

[1]

Plaintiff's caption on the FAC indicates that three causes of action are asserted – (1) breach of implied contract; (2) promissory estoppel; and (3) negligent misrepresentation. However, the FAC only asserts two causes of action – breach of contract and promissory estoppel – in the body of the FAC.